

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. cxlvi.]
Provisional Order Confirmation (Brighton) Act, 1930.



CHAPTER cxlvi.

An Act to confirm a Provisional Order of the A.D. 1930.
Minister of Health relating to Brighton. —
[1st August 1930.]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made a provisional order which needs confirmation by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The order of the Minister of Health which is set out in the schedule to this Act is hereby confirmed and shall have full validity and force.

Order in
schedule
confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Brighton) Act 1930.

Short title.

A.D. 1930.

S C H E D U L E .

BOROUGH OF BRIGHTON.

*Brighton
Order.*

Provisional Order altering certain local Acts.

WHEREAS the borough of Brighton is an urban district of which the mayor aldermen and burgesses acting by the council are the local authority for the purposes of the Public Health Act 1875;

And whereas under the provisions of certain local Acts and orders the Corporation carry on a water undertaking and supply water within the borough and to certain other areas;

And whereas by section 60 of the Brighton Hove and Preston Constant Service Waterworks Act 1854 the Brighton Hove and Preston Constant Service Waterworks Company were empowered to make alter and maintain and discontinue in and upon any lands vested in them under that Act any works and conveniences for the purposes of the Act but doubts have arisen whether this enactment empowers the Corporation (in whom the undertaking and powers of the Company were vested by the Brighton Corporation Waterworks Act 1872) to construct and maintain a service reservoir upon land at Woodingdean within the borough which is vested in the Corporation;

And whereas by virtue of part V of the Brighton Improvement Act 1884 and section 21 of the Brighton Corporation Act 1896 the Corporation hold the lands described in part II of Schedule B to the local Act of 1884 and in Schedule A to the local Act of 1896 (all of which lands in the local Act of 1896 and in this order are called "the Race Ground") for the benefit of the inhabitants and visitors in the borough and the public in general for the purpose of racing exercise recreation or other diversion;

And whereas part III of the Brighton Corporation Act 1896 contains provisions as to recreation grounds (which expression is defined as including the Race Ground) and comprises sections 19 to 33 of that Act;

And whereas by section 22 of the local Act of 1896 the Corporation were empowered to let on lease or grant licences for the use of all or any part of the Race Ground for any purpose for which at the passing of the Act the same was let on lease or used under licence or which was authorised by the indentures relating to the Race Ground which were mentioned in the recitals to the Act but it was provided that the term of any such lease should not exceed seven years;

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And whereas under sections 23 and 24 of the local Act of 1896 the Corporation may permit the use of the Race Ground or may set apart any portion of it for games and other purposes and for twenty-eight days in any one year may close against the public and charge for admission to the Race Ground and may exclude therefrom all persons vehicles goods and things unless payment be made of the reasonable sums demanded ;

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—
*Brighton
Order.*

And whereas section 29 of the local Act of 1896 empowers the Corporation to erect maintain furnish and equip conservatories refreshment rooms and other temporary or permanent buildings erections and conveniences in the Race Ground as may be required or convenient for the purpose thereof and for the public resorting thereto ;

And whereas the Corporation have applied to the Minister of Health for the issue of a provisional order to alter or amend section 60 of the Brighton Hove and Preston Constant Service Waterworks Act 1854 part V of the Brighton Improvement Act 1884 and part III of the Brighton Corporation Act 1896 in the manner following :

Now therefore the Minister of Health in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

PART I.

PRELIMINARY.

1. This order may be cited as the Brighton Order 1930 and shall come into operation on the date of the Act of Parliament confirming it.

Short title
and com-
mencement.

2. In this order—

“ The Act of 1896 ” means the Brighton Corporation Act 1896 ;

“ The Board ” means the Racecourse Betting Control Board constituted by the Racecourse Betting Act 1928 and the successors of that Board ;

“ The borough ” means the borough of Brighton ;

“ The Corporation ” means the mayor aldermen and burgesses of the borough acting by the council ;

“ The deposited plan ” means the plan which was deposited in the office of the Minister of Health on the third day of April nineteen hundred and thirty and of which duplicates were on the same day deposited in the office of the Clerk of Parliaments House of Lords and the Committee and Private Bill Office of the House of Commons.

Interpreta-
tion.

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PART II.

*Brighton
Order.*

WATER RESERVOIR AT WOODINGDEAN.

Construc-
tion and
maintenance
of additional
service
reservoir.

3. The Corporation may in the lines and situation and upon the lands vested in them which are delineated on the deposited plan construct in accordance with plans and sections to be approved by the Minister of Health and maintain an additional service reservoir at Woodingdean within the borough together with all such works buildings and apparatus as may be necessary or convenient in connection with that reservoir or subsidiary thereto.

Application
of local Acts
and orders to
works.

4. The works so authorised shall for all purposes be deemed part of the water undertaking of the Corporation and the provisions of the local Acts and orders in force in the borough relating to the supply of water by the Corporation shall so far as the same are applicable extend and apply to those works.

Works
constructed
before
operation of
this order.

5. Any part of the works so authorised which may have been constructed by the Corporation before the date upon which this order comes into operation shall be deemed to have been constructed in accordance with the provisions of this order.

PART III.

THE RACE GROUND.

Leasing of
portions of
Race Ground
to the Board.

6.—(1) The Corporation may under section 22 of the Act of 1896 and except so far as modified by this article subject to the provisions of that section let on lease to the Board such portion of the Race Ground as the Board may certify to be required for the purpose of the erection by the Board of buildings to be used for the purpose of operating totalisators thereon on days when horse races but no other races take place on the Race Ground notwithstanding that the part so let shall not have been at or prior to the passing of the Act of 1896 let on lease or used under licence for that or any other purpose.

(2) The term of any lease authorised by this article may exceed the term of seven years prescribed by the said section 22.

Erection by
Corporation
of stables
and borrow-
ing.

7.—(1) The powers conferred on the Corporation by section 29 of the Act of 1896 shall be deemed to include the erection maintenance furnishing and equipment of such temporary or permanent buildings on the Race Ground as stables for horses as the stewards of the Jockey Club may certify to be necessary for the purpose of the use of the Race Ground for horse races.

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(2) The purposes of this article shall be deemed to be purposes of the Brighton Improvement Act 1884 for which the Corporation with the authorisation of the Minister of Health may borrow moneys under the proviso to section 157. of that Act.

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—
*Brighton
Order.*

8. The Corporation may direct that any part of the Race Ground which under the powers conferred by this part of this order may have been leased to the Board or upon which stables may have been erected shall be closed to the public either permanently or temporarily and while such a direction is in force the Corporation or any person authorised in writing by them may exclude any unauthorised person from admission to the part of the Race Ground which may be closed under the powers of this article.

Closing of
parts of Race
Ground and
exclusion of
public.

9. The provisions of this part of this order shall have effect notwithstanding anything in part V of the Brighton Improvement Act 1884 or part III of the Act of 1896.

Effect of
this part of
this order.

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